

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF KUZNETSOVA AND OTHERS v. RUSSIA

(Applications nos. 33552/21 and 36 others –
see appended list)

JUDGMENT

STRASBOURG

25 April 2024

This judgment is final but it may be subject to editorial revision.



In the case of Kuznetsova and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Peeter Roosma*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 4 April 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a

prosecuting party in the proceedings under the Code of Administrative Offences; *Tomov and Others v. Russia*, nos. 18255/10 and 5 others, §§ 114-42, 9 April 2019, as regards the conditions of transport of detainees; and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs 11 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

15. The Court has further examined the rest of the complaints raised by the applicants and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention or the Protocols thereto. It follows that this part of the applications must be rejected in accordance with Article 35 § 4 of the Convention.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

16. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention, and *declares* the remainder of the applications inadmissible;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 25 April 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Peeter Roosma
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	33552/21 09/06/2021	**Natalya Sergeyevna KUZNETSOVA** 1995	Shagiyeva Regina Ilgizovna Leninigorsk	Rally "Free Navalnyy" Naberezhnye Chelny 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 10/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 1.10 p.m. on 31/01/2021 until 2.55 p.m. on 01/02/2021.	4,000
2.	34362/21 03/06/2021	**Ivan Yevgenyevich TIMESHKOV** 2002	Glukhov Aleksey Vladimirovich Novocheboksarsk	Rally "Free Navalnyy" Cheboksary 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Chuvashia Republic 05/03/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 23/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
3.	34364/21 03/06/2021	**Aleksandr Andreyevich ALEKSEYEV** 1999	Glukhov Aleksey Vladimirovich Novocheboksarsk	Rally "Free Navalnyy" Cheboksary 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 12,000	the Supreme Court of the Chuvashia Republic 16/03/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 23/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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4.	40680/21 25/07/2021	**Yelena Igorevna KONDRAKHINA** 1987	Mikhaylova Varvara Dmitriyevna St Petersburg	Rally to support convicted activists from a group known as Set (Network) St Petersburg 22/06/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 27/04/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report from around 1 p.m. until 7.25 p.m. on 22/06/2020; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
5.	40942/21 23/07/2021	**Andrey Vladimirovich NOVIKOV** 1996	Tevosov Georgiy Eduardovich Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	detention for 10 days	Moscow City Court 10/02/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 2 a.m. on 03/02/2021 until 3 p.m. on 04/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
6.	41050/21 30/07/2021	**Olga Aleksandrovna POPOVA** 1995	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	detention for 8 days	Moscow City Court 05/02/2021	Art. 3 - inadequate conditions of detention during transport - poor conditions of transfer in a police van on 31/01/2021: the applicant was transferred with 18 other demonstrators in a police van equipped to accommodate 8 persons, without ventilation; Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 3 p.m. on 31/01/2021 until 4.40 p.m. on 01/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings;	6,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	
7.	41119/21 24/07/2021	**Aleksandr Nikolayevich LYSENKO** 1975	Tregubova Yuliya Mikhaylovna Balashikha	Forum "Municipal Russia" Moscow 13/03/2021	article 20.33 of CAO	fine of RUB 15,000	Izmaylovskiy District Court of Moscow 18/05/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 10.30 a.m. until 4.30 p.m. on 13/03/2021.	4,000
8.	41123/21 24/07/2021	**Roman Aleksandrovich YUDAKOV** 1983	Tregubova Yuliya Mikhaylovna Balashikha	Forum "Municipal Russia" Moscow 13/03/2021	article 20.33 of CAO	fine of RUB 15,000	Izmaylovskiy District Court of Moscow 18/05/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 10.30 a.m. until 4.30 p.m. on 13/03/2021.	4,000
9.	41126/21 24/07/2021	**Vasiliy Viktorovich BALASHOV** 1992	Tregubova Yuliya Mikhaylovna Balashikha	Forum "Municipal Russia" Moscow 13/03/2021	article 20.33 of CAO	fine of RUB 15,000	Izmaylovskiy District Court of Moscow 24/05/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 10.30 a.m. until 6.30 p.m. on 13/03/2021.	4,000

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10.	41128/21 24/07/2021	**Irina Sergeyevna ILDERYAKOVA** 1995	Tregubova Yuliya Mikhaylovna Balashikha	Forum "Municipal Russia" Moscow 13/03/2021	article 20.33 of CAO	fine of RUB 15,000	Izmaylovskiy District Court of Moscow 18/05/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 10.30 a.m. until 2.30 p.m. on 13/03/2021.	4,000
11.	41178/21 05/08/2021	**Ilya Alekseyevich KORGUN** 1991	Sidorkina Svetlana Ivanovna Moscow	Rally "Free Navalnyy" Moscow 23/01/2021	article 20.2 § 6.1 of CAO	detention for 10 days	Moscow City Court 11/02/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
12.	41648/21 06/08/2021	**Anna Vladimirovna BYKOVA** 1975	Pershakova Yelena Yuryevna Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 10/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 12.45 p.m. on 31/01/2021 until 12 a.m. on 01/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
13.	54530/21 11/10/2021	**Vladislav Olegovich KULAMOV** 1986	Sharafutdinov Eldar Ramilyevich Orenburg	Rally "Free Navalnyy" Orenburg 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Orenburg Regional Court 14/04/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report from 4 p.m. until 10.30 p.m. on 23/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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14.	54543/21 14/10/2021	**Viktor Sergeyevich MINYASHEV** 1989		Rally "Free Navalnyy" Samara 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Samara Regional Court 15/04/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 31/01/2021.	4,000
15.	54832/21 27/10/2021	**Aleksandr Semenovich BIBIKOV** 1995	Nazarov Ilya Yulyevich Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	detention for 7 days	Moscow City Court 11/05/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 11.50 p.m. on 02/02/2021 until 4 p.m. on 03/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
16.	54939/21 28/10/2021	**Vasiliy Viktorovich OLEYNIKOV** 1987	Balog Natalya Andreyevna Krasnoyarsk	Rally "Free Navalnyy" Krasnoyarsk 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnoyarsk Regional Court 29/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.15 p.m. until 8.50 p.m. on 23/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
17.	55061/21 25/10/2021	**Georgiy Konstantinovich CHUVILO** 1998		Rally "Free Navalnyy" Kaluga 31/01/2021	article 20.2.2 § 1 of CAO	fine of RUB 16,000	Kaluga Regional Court 29/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 2.20 p.m. on 31/01/2021 until 3.56 p.m. on 02/02/2021.	4,000

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18.	56119/21 16/11/2021	**Timur Zinatulloyevich RAKHMATULIN** 1981	Valiyeva Elza Albertovna Nizhniy Novgorod	Rally "Free Navalnyy" Orenburg 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Orenburg Regional Court 18/05/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
19.	56131/21 25/10/2021	**Yegor Sergeyevich MYAKINNIKOV** 1996	Tseytlina Olga Pavlovna St Petersburg	Rally to support Belarusians participating in mass protests St Petersburg 24/01/2021	article 20.2 § 2 of CAO	detention for 2 days	St Petersburg City Court 27/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 12 p.m. on 23/03/2021 until 3 p.m. on 25/03/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
20.	56573/21 26/10/2021	**Alena Andreyevna DYRTSEVA** 1999	Rusnakov Pavel Vladimirovich Tyumen	Rally "Free Navalnyy" Tyumen 21/04/2021	article 20.2 § 8 of CAO	detention for 15 days	Tyumen Regional Court 30/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 8.05 p.m. on 21/04/2021 until 2 p.m. on 23/04/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000

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21.	56681/21 28/10/2021	**Yuriy Sergeyevich SERGEYCHIK** 1976		Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 21/07/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 12.02 p.m. until 9.30 p.m. on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
22.	56927/21 28/10/2021	**Sergey Vladimirovich RYABTSEV** 1973	Yakupova Anna Vladimirovna Izhevsk	Rally "Free Navalnyy" Izhevsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Udmurtia Republic 28/04/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
23.	57308/21 19/11/2021	**Andrey Gennadyevich ARTYUSHIN** 1982		Rally "Free Navalnyy" Irkutsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Irkutsk Regional Court 17/08/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
24.	57392/21 26/10/2021	**Emir Isabekovich ISABEKOV** 2000	Anosova Lidiya Sergeyevna Orekhovo-Zuyevo	Rally "Free Navalnyy" Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 26/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 2 p.m. until 11 p.m. on 23/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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25.	57407/21 16/11/2021	**Georgiy Georgiyevich LUTSKEVICH** 1975		Rally "Free Navalnyy" Voronezh 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Voronezh Regional Court 04/06/2021		3,500
26.	58326/21 19/11/2021	**Maksim Romanovich ZARKOV** 2001		Rally "Free Navalnyy" Nizhniy Novgorod 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 19/05/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
27.	58521/21 25/10/2021	**Aleksandr Andreyevich KUZMENKO** 1995		Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 28/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 2.30 p.m. until 10.30 p.m. on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
28.	58639/21 12/11/2021	**Yevgeniy Viktorovich KOBAK** 1986		Rally "Free Navalnyy" Kazan 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 12/05/2021		3,500

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29.	58761/21 17/11/2021	**Zakir Alikerimovich ABDULKERIMOV** 1994		Rally "Free Navalnyy" Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 17/05/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 23/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
30.	59073/21 22/11/2021	**Ilya Mikhaylovich PONOMAREV** 1994		Rally "Free Navalnyy" Voronezh 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Voronezh Regional Court 25/05/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 1.55 p.m. on 31/01/2021 until 1.05 a.m. on 01/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
31.	59270/21 15/11/2021	**Alina Rustemovna BAYKEY** 1993	Bayeva Aleksandra Nikolayevna Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	detention for 3 days	Moscow City Court 17/05/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 11 p.m. on 02/02/2021 until 2 p.m. on 03/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000

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32.	59441/21 20/11/2021	**Nikolay Aleksandrovich MOSKVICHEV** 1995		Rally "Free Navalnyy" Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 5,000	Moscow City Court 21/05/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4 p.m. until 10.30 p.m. on 23/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
33.	60092/21 21/11/2021	**Aleksandr Sergeyevich YEFIMOV** 1998		Rally "Free Navalnyy" Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 21/05/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report from 4.30 p.m. until 8.30 p.m. on 23/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
34.	60179/21 24/10/2021	**Yakov Valeryevich BARVASHOV** 1970		Rally "Free Navalnyy" Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 01/07/2021		3,500
35.	60620/21 08/12/2021	**Yegor Yuryevich LITVINOV** 1999	Yermolayeva Nadezhda Viktorovna Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 09/06/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 12.10 a.m. until 8 p.m. on 03/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
36.	60640/21 27/11/2021	**Mikhail Makarovich MUKHOYAN** 1964	Yatsenko Irina Aleksandrovna Moscow	Rally "Free Navalnyy" Korolev 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow Regional Court 27/05/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report from 7.30 p.m. until 10.30 p.m. on 21/04/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
37.	60650/21 20/11/2021	**David Igorevich BOGATYREV** 2002	Savin Aleksandr Vasilyevich Stavropol	Rally "Free Navalnyy" Stavropol 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Stavropol Regional Court 22/09/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 21/04/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

[1] Plus any tax that may be chargeable to the applicants.